Malaya (March 21, 2014)

[MANILA CITY ORDINANCE NO. 8341, March 20, 2014]

REGULAR SESSION NO. 59
9TH CITY COUNCIL

Begun and held in the City Council on Thursday, the sixth day of February, Two Thousand Fourteen

AN ORDINANCE AMENDING CERTAIN ADMINISTRATION AND ENFORCEMENT PROVISIONS OF ARTICLE XI OF ORDINANCE NO. 8119, OTHERWISE KNOWN AS THE MANILA COMPREHENSIVE LAND USE PLAN AND ZONING ORDINANCE OF 2006

PRINCIPAL AUTHORS:

HON. JOEL R. CHUA
HON. ERNESTO C. ISIP, JR.

and

HON. MARLON M. LACSON
Majority Floor Leader

Be it ordained by the City Council of Manila, in session assembled, *THAT:*

SECTION 1. Section 63, Article XI of Ordinance No. 8119, otherwise known as the Manila Comprehensive Land Use Plan and Zoning Ordinance of 2006 is hereby amended as follows:

SEC. 63. ISSUANCE OF ZONING PERMIT (LOCATIONAL CLEARANCE) AND SPECIAL USE PERMITS.

All lot/land owners/land developers and business establishments shall secure a zoning permit (locational clearance) from the City Planning and Development Officer for all conforming uses.

All applications for the issuance of the special use permit for all conforming uses,

regardless on whether it is a new application or a renewal thereof, shall be forwarded by the City Planning and Development Officer to the Sangguniang Panlungsod through the Committee on Housing, Urban Development and Resettlement.

No special use permits as provided for under Section 52 hereof shall be issued by the City Planning and Development Officer unless and until a resolution approving the application mentioned in the preceding paragraph is issued by the Sangguniang Panlungsod.

In cases of applications for variances and exceptions, the resolution approving the zoning permit or special use permit shall be issued by the Sangguniang Panlungsod only upon recommendation of the Manila Zoning Board of adjustment Appeals (MZBAA) through the Committee on Housing, Urban Development and Resettlement.

SEC. 2. Section 64, Article XI of Ordinance No. 8119, otherwise known as the Manila Comprehensive Land Use Plan and Zoning Ordinance of 2006

> SEC. 64. PERIOD OF ZONING PERMIT/SPECIAL USE PERMIT'S APPROVAL/DISAPPROVAL.
>
> The approval/disapproval of the zoning permit shall not be withheld for more than thirty (30) days from receipt of the application except those provided for under Section 60 (Deviations) hereof, in which case, said period shall not exceed sixty (60) days.
>
> A special use permit shall be issued by the City Planning and Development Officer within ten (10) days from receipt of the resolution approving the same issued by the Sangguniang Panlungsod as mentioned in the preceding section.

SEC. 3. The issuance of the Special Use Permit under Section 1 hereof shall be a *condition sine qua non* for the issuance of the business permit of those covered under Section 52 of Ordinance No. 8119.

SEC. 4. If, for any reason or reasons, any part or provision of this Ordinance shall be held unconstitutional or invalid, other parts or provision hereof, which are not affected thereby, shall contunue to be in full force and effect.

SEC. 5. Effectivity Clause. - This Ordinance shall take effect upon its approval.

This Ordinance was finally enacted by the City Council of Manila on March 4. 2014.

PRESIDED BY:

(Sgd.) EDWARD V.P. MACEDA
President Pro-Tempore and
Acting Presiding Officer
City Council, Manila

ATTESTED:

(Sgd.) LUCH R. GEMPIS, JR.
City Government Department Head III
(Secretary to the City Council)

APPROVED BY HIS HONOR, THE MAYOR, ON MARCH 20, 2014.

(Sgd.) JOSEPH EJERCITO ESTRADA
Mayor
City of Manila

ATTESTED:

(Sgd.) EDWARD S. SERAPIO
City Government Department Head III
(Secretary to the Mayor)

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